

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name and address): Robert E. Freitas (SBN 80948) Freitas & Weinberg LLP 303 Twin Dolphin Drive, Suite 600 Redwood City, CA 94065 ATTORNEY FOR (Name): Veronica Wu	TELEPHONE NO.: FOR COURT USE ONLY FILED FEB 16 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY <u>T. PHAN</u> DEPUTY
NAME OF COURT: Santa Clara County Superior Court STREET ADDRESS: 191 N. First Street MAILING ADDRESS: 191 N. First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME:	CASE NUMBER: 24CV431016
PLAINTIFF: Veronica Wu DEFENDANT: Hone Capital LLC, and CSC UpShot Ventures I, L.P.	
APPLICATION FOR ENTRY OF JUDGMENT ON SISTER-STATE JUDGMENT ☐ AND ISSUANCE OF WRIT OF EXECUTION OR OTHER ENFORCEMENT ☐ AND ORDER FOR ISSUANCE OF WRIT OR OTHER ENFORCEMENT	

Judgment creditor applies for entry of a judgment based upon a sister-state judgment as follows:

1. Judgment creditor (name and address):
Veronica Wu
c/o Robert E. Freitas, Freitas & Weinberg LLP, 303 Twin Dolphin Drive, Suite 600, Redwood City, CA 94065

2. a. Judgment debtor (name): **Hone Capital LLC**

b. ☐ An individual (last known residence address):

c. ☐ A corporation of (specify place of incorporation):

(1) ☐ Foreign corporation

☐ qualified to do business in California

☐ not qualified to do business in California

d. ☒ A partnership (specify principal place of business): **Palo Alto, CA (Hone Capital LLC is a LLC)**

(1) ☐ Foreign partnership which

☐ has filed a statement under Corp C 15700

☐ has not filed a statement under Corp C 15700

3. a. Sister state (name): **Delaware**

b. Sister-state court (name and location): **Delaware Court of Chancery**
500 North King Street, Wilmington, DE 19801

c. Judgment entered in sister state on (date): **September 21, 2023**

4. **An authenticated copy of the sister-state judgment is attached to this application.** Include accrued interest on the sister-state judgment in the California judgment (item 5c).

a. Annual interest rate allowed by sister state (specify): **10.50%**

b. Law of sister state establishing interest rate (specify): **6 Del. Code § 2301**

5. a. Amount remaining unpaid on sister-state judgment: \$ **45,666.21**

b. Amount of filing fee for the application: \$ **435**

c. Accrued interest on sister-state judgment: \$ **1,944.25** See Att. 5 see declaration

d. Amount of judgment to be entered (total of 5a, b, and c): \$ **48,045.46**

(Continued on reverse)

SHORT TITLE: Veronica Wu v. Hone Capital LLC, et al.

CASE NUMBER:

6. ☐ Judgment creditor also applies for issuance of a writ of execution or enforcement by other means before service of notice of entry of judgment as follows:
- a. ☐ Under CCP 1710.45(b).
- b. ☐ A court order is requested under CCP 1710.45(c). Facts showing that great or irreparable injury will result to judgment creditor if issuance of the writ or enforcement by other means is delayed are set forth as follows:

☐ continued in attachment 6b.

7. An action in this state on the sister-state judgment is not barred by the statute of limitations.
8. I am informed and believe that no stay of enforcement of the sister-state judgment is now in effect in the sister state.
9. No action is pending and no judgment has previously been entered in any proceeding in California based upon the sister-state judgment.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct except as to those matters which are stated to be upon information and belief, and as to those matters I believe them to be true.

Date: February 16, 2024

Robert E. Freitas
(TYPE OR PRINT NAME)

Robert E. Freitas
(SIGNATURE OF JUDGMENT CREDITOR OR ATTORNEY)

Swift Legal
File By Fax

Attachment 5.c

The accrued interest calculation in Item 5.c is for the period ending February 16, 2024.

Interest on the order of the Delaware Court of Chancery accrues at the rate of 10.50% per annum. The daily rate is \$13.14 on the unpaid balance of \$45,666.21.



State of Delaware,}ss.

I, Tamara N. Burton,
Register of the Court of Chancery of the State of Delaware do hereby certify that the foregoing is
a true and correct copy of: Proposed Order Granting Petitioner's Rule 88 Request for Costs and
Fees Against Hone Capital LLC

as the same remains on file and of record in said Court.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed the seal of said
Court, this third day of January _____ in the year of our Lord,
two thousand and twenty-four.

Tamara N. Burton

Register in Chancery

State of Delaware, to wit:

I, Kathaleen St. Jude McCormick, Chancellor of the State of Delaware, do hereby certify
that the foregoing Record and Attestation, made by Tamara N. Burton, Register in Chancery
whose name is thereto subscribed, and to which the seal of said Court is affixed, are in due form
of law, and made by the proper officer.

IN TESTIMONY WHEREOF, I have hereunto set my hand, this third _____
day of January _____ in the year of our Lord, two thousand and twenty-four
_____.

Kathaleen St. J. McCormick

Chancellor

State of Delaware,}ss.

I, Tamara N. Burton,
Register of the Court of Chancery of the State of Delaware do hereby certify that the Honorable
Kathaleen St. Jude McCormick by whom the foregoing attestation was made and whose name is
thereto subscribed, was at the time of the making thereof, and still is Chancellor of the State of
Delaware, duly commissioned and sworn, to all whose acts, as such full faith and credit are and
ought to be given, as well in Courts of Justice as elsewhere.

IN TESTIMONY WHEREOF, I have hereunto, set my hand and affixed the seal of the
Court this third day of January _____ in the year of our Lord
two thousand and twenty-four.

Tamara N. Burton

Register in Chancery



GRANTED

EFiled: Sep 21 2023 04:06PM EDT
Transaction ID 70922859
Case No. 2023-0496-JTL



IN THE COURT OF CHANCERY OF THE STATE OF DELAWARE

VERONICA WU,

Petitioner,

v.

C.A. No. 2023-0496-JTL

HONE CAPITAL LLC, and
CSC UPSHOT VENTURES I, L.P.,

Respondents.

**[PROPOSED] ORDER GRANTING PETITIONER'S RULE 88 REQUEST
FOR COSTS AND FEES AGAINST HONE CAPITAL LLC**

WHEREAS, on August 24, 2023, Petitioner filed a Motion for Entry of Default Judgment Against Hone Capital, LLC (the "Motion") (Trans. ID 70707104);

WHEREAS, the Court granted the Motion by an Order Granting Motion for Default Judgment Against Defendant Hone Capital LLC and Establishing Procedure for Payment of Advancement on September 6, 2023, and ordered Hone Capital LLC to reimburse Petitioner for her costs and attorneys' fees incurred in connection with this action. (Trans. ID. 70809044; *see also* Trans. ID. 70807220 (Order Entering Default Judgment Against Defendant Hone Capital LLC));

WHEREAS, on September 21, 2023, counsel for Petitioner submitted a declaration pursuant to Court of Chancery Rule 88 setting forth the reasonable costs and attorneys' fees incurred in connection with the instant action (the "Rule 88 Declaration");

WHEREAS, as set forth in the Rule 88 Affidavit, Petitioner's reasonable costs and attorneys' fees incurred in connection with this action to date are \$45,666.21;

NOW THEREFORE, IT IS HEREBY ORDERED, this 21st day of September, 2023 that within five (5) business days of the date of this Order, Hone Capital LLC shall pay Petitioner \$45,666.21.

J. Travis Laster
Vice Chancellor J. Travis Laster

CERTIFIED:
AS A TRUE COPY:
ATTEST:
REGISTER IN CHANCERY
BY Stacy Lighter
11/3/24

This document constitutes a ruling of the court and should be treated as such.

Court: DE Court of Chancery Civil Action

Judge: J Travis Laster

File & Serve

Transaction ID: 70922261

Current Date: Sep 21, 2023

Case Number: 2023-0496-JTL

Case Name: CONF ORDER - Veronica Wu v. Hone Captial LLC, et al

Court Authorizer: J Travis Laster

/s/ Judge J Travis Laster